

Calendar Line 5

Case Name: *Shabana Pirani v. Costco Wholesale Corporation*

Case No.: 25CV473157

Before the Court is Plaintiff Shaban Pirani's ("Plaintiff") motion to strike Defendant Costco Wholesale Corporation's ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action for damages arising out of a vehicle collision that purportedly occurred in a Costco parking lot. Plaintiff initiated this action on August 21, 2025, with the filing of a Judicial Form Complaint which asserts a variety of claims, including negligence. On October 22, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute, and Defendant's counsel's own declaration affirms that no such meet and confer took place. (See Declaration of Brian D. Johnson in Support of Opposition to Motion to Strike and for Entry of Default ("Johnson Decl."), ¶ 2.) Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) she was never served with the Answer; (2) no proof of service for the Answer was filed with the Court; (3) Defendant's counsel "has no valid appearance and is subject to a separate default proceeding"; (4) and Defendant has failed to properly appear or defend this action. The Court does not find any of these arguments persuasive.

First, a code-compliant proof of service was filed with the Court on October 22, 2025 (see Code Civ. Proc., § 1013a), which reflects that service of the Answer was effectuated on Plaintiff by mail that day to the address provided by her, which is notably the same address that she lists in the header of this motion. This filing clearly defeats Plaintiff's contention that no proof of service was ever filed with the Court. Generally, the filing of a proof of service that complies with applicable statutory requirements creates by itself a rebuttable presumption that service was proper. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441.) The rebuttable presumption can only be dispelled by contradictory evidence. (See *Craig v. Brown & Root* (2000) 84 Cal.App.4th 416, 421.) Plaintiff provides contradictory evidence in the form of her declaration, wherein she states that she was not served with the Answer and only discovered it was filed by reviewing the Court docket. (Declaration of Shabana Pirani in Support of Motion to Strike ("Pirani Decl."), ¶ 2.)¹

¹ The Court notes that any independently filed and procedurally unattached and inappropriate declarations filed before the notice of this motion, which was filed on January 26, 2026, are not before the Court.

Once the presumption of service is dispelled, the trier of fact shall determine the existence or non-existence of the fact from the evidence and any appropriate inferences that may be drawn from it. (*Bonzer v. City of Huntington Park* (1993) 20 Cal.App.4th 1474, 1479.) Thus, once the presumption of proper service is gone, the trier of fact must weigh the evidence and decide whether or not service was effected pursuant to the applicable statutory requirements. (See *Craig, supra*, 84 Cal.App.4th at 421-22 [“[I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received.”].)

The Court is not persuaded by Plaintiff’s assertion of non-service. First, the October 22nd proof of service indicates that service was also made via email to the address listed by Plaintiff on the heading of the instant motion (shabana.devani28@gmail.com), and Defendant submits a copy of the actual email that attached a copy of the Answer and was sent to Plaintiff’s listed email address. (Johnson Decl., ¶ 4, Exhibit B.) A PDF attachment is clearly visible in this email, which is titled “ANSWER,” which is strong circumstantial evidence that the attachment was Defendant Costco’s Answer. (*Id.*, ¶ 3, Exhibit A.) While service by email is not the issue here, this evidence supports a inference that all correspondence regarding the delivery of the Answer was occurring as would be expected. Second, the veracity of all of the contents of Plaintiff’s declaration are called into question by several clear inaccuracies contained within, including where Plaintiff states that attorney S.J. Harmon appeared at a Case Management and that that appearance was “quashed by court order.” (Pirani Decl., ¶ 5.) Plaintiff failed to submit this order, which makes sense because the Court made no such order, and there is no indication that such an order exists. (Johnson Decl., ¶ 5.)

Troublingly, Plaintiff also states in her declaration that attorney Hammon “failed to respond” to a separate “civil complaint” that she filed against her for “improper appearance.” (Pirani Decl., ¶ 6.) But this is demonstrably false because, as Defendant explains, Hammon filed an anti-SLAPP motion in response to Plaintiff’s complaint against her, and such a motion is a responsive pleading. (Johnson Decl., ¶ 6, Exhibit 6; *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, 1118 [stating that an anti-SLAPP motion may be filed “in lieu of responding to the complaint.”].) In any event, even if what Plaintiff said was true, it has no bearing on whether Defendant’s answer should be stricken in this action.

Given the foregoing, Plaintiff’s motion to strike Defendant’s answer and request for entry of default is DENIED.

As for Defendant’s request for sanctions pursuant to Code of Civil Procedure section 128.5 (“Section 128.5”) on the ground that Plaintiff’s motion is frivolous and made in bad faith, the Court must deny this request based on Defendant’s failure to comply with the separate notice and safe harbor requirements of Section 128.5, subdivision (f). However, the Court cautions Plaintiff that had the foregoing procedural requirements been met, it *very well might* have imposed sanctions against her barring any form of unlikely justification. As Defendant notes, this is not the first time Plaintiff has attempted to strike its Answer, and her actions in this regard have included making demonstrably inaccurate representations to the Court. Plaintiff’s first request for entry of default was denied by clerk on November 4, 2025 based on Defendant having filed its Answer on October 22nd. Plaintiff’s request was

supported by her declaration which contained misguided assertions that Defendant had failed to appear and that the Matheny Sears law firm did not represent it.

Despite the foregoing denial, Plaintiff *again* attempted to strike Defendant's Answer on November 10, 2025, filing a declaration asserting once again that the Matheny Sears firm was not representing Defendant, claiming that she was not served with the Answer, and claiming the Answer was filed late. She filed a further declaration on November 25, 2025, wherein she falsely stated that the Answer had been "struck and quashed." Plaintiff filed yet another declaration on December 1, 2025, falsely claiming that the Court had "properly quashed and struck" Defendant's Answer and seeking Defendant's default damages of \$5,250,000. On December 19, 2025, the Court clerk denied entry of default, informing Plaintiff for a *second* time that Defendant had filed an Answer on October 22nd.

Plaintiff nevertheless again pursued entry of default with the instant motion based on suspect factual contentions. It is clear to the Court that Plaintiff is attempting to obtain a default and judgment without litigating the underlying merits of her claims and is doing so by making the instant motion and multiple prior requests for entry of default in contravention of law and legal authority, which at some point will transition to bad faith if it has not already. Sanctions may be imposed under Section 128.5 for "actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay" (Code Civ. Proc., § 128.5, subd. (a)) and "actions or tactics" includes the filing of motions" (Code Civ. Proc., § 128.5, subd. (b)(1)). "Frivolous" means "totally and completely without merit or for the sole purpose of harassing an opposing party." (Code Civ. Proc., § 128.5, subd. (b)(2).) The Court recognizes that Plaintiff is self-represented, but such individuals are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation"].)

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Shabana Pirani v. Petrinovich Pugh & Co.*

Case No.: 25CV473159

Before the Court is Plaintiff Shabana Pirani's ("Plaintiff") motion to strike Defendant Petrinovich Pugh & Co.'s ("Defendant") answer and request for entry of default. Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

This is an action which appears to arise out of Defendant's decision to terminate Plaintiff's employment. Plaintiff initiated this action on August 21, 2025, with the filing of the Judicial Form Complaint which asserts a variety of claims, including negligence and an unspecified intentional tort. On October 9, 2025, Defendant filed its Answer to the Complaint. On January 26, 2026, Plaintiff filed the instant motion to strike Defendant's Answer and request for entry of default. Defendant opposes the motion.

As an initial matter, the Court admonishes Plaintiff that she was *required* under Code of Civil Procedure section 435.5 to meet and confer with Defendant prior to filing the instant motion. (See Code Civ. Proc., § 435.5, subd. (a).) Plaintiff has not filed a declaration attesting to having met and conferred with Defendant as required by the statute. Despite this failure, which could be dispositive, the Court will address the merits of Plaintiff's motion in the interest of judicial economy.

Plaintiff's motion to strike Defendant's Answer is predicated on the following arguments: (1) the Answer is untimely; (2) the Answer was not properly served on Plaintiff; (3) no proof of service for the Answer was filed with the Court; and (4) Defendant's counsel is "unauthorized" and may not appear on Defendant's behalf because they did not file a notice of appearance. The Court does not find any of these arguments persuasive.

First, Code of Civil Procedure section 412.20, subdivision (a)(3), provides that a defendant's answer to a complaint is due within 30 days after its service. Pursuant to Code of Civil Procedure section 1010.6, subdivision (b)(3), and Santa Clara County Superior Court Local Rule No. 6, a filing must be received by the Court by 5 p.m. to have it deemed filed the same day. According to the Court's filing system, Defendant's Answer was submitted for filing on October 9, 2025 at 4:31 p.m., which is 30 days after Defendant was served with the Complaint on September 9, 2025. Plaintiff urges that this filing was "after hours" and therefore must be deemed filed the next court day. But this is incorrect as a matter of law, and Plaintiff appears to be relying on *non-existent* case law, which concerns the Court,² as well as irrelevant court rules.³ The Court recognizes that Plaintiff is self-represented, but cautions her that such individuals are held to the same standards as attorneys. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties

² Plaintiff cites *Keller v. Jordan* (2005) 126 Cal.App.4th 1407, 1414, which the Court was unable to locate.

³ Plaintiff cites California Rules of Court, rule 2.261(a) for the proposition that documents filed after court hours are deemed filed on the next court day. Not only does rule 2.261 not have a subdivision (a), but it does not relate to when a document submitted for filing is to be deemed filed. Instead, it merely provides that courts that participated in pilot programs for electronic filing and forms generation under former rule 981.5 are authorized to continue to modify Judicial Council forms for that purpose.